

Court No. - 21

Case :- WRIT - C No. - 8839 of 2023

Petitioner :- Chandan Lal @ Chandan Kumar

Respondent :- U.P. Power Corporation Limited And 3 Others

Counsel for Petitioner :- Ashutosh Shukla

Counsel for Respondent :- C.S.C,Krishna Agarawal,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The petitioner has challenged the orders dated 10.01.2022 and 18.06.2022 passed by respondent no. 2 and the citation dated 25.02.2023 issued by respondent no. 4 for recovery of electricity dues in a case of theft of electricity.

The submission of learned counsel for the petitioner is that the petitioner was served with a notice of provisional assessment dated 17.12.2021 on 25.12.2021. In the said notice, no date of hearing was fixed. The petitioner filed objections on 08.01.2022 but without considering the same, the respondents have proceeded to pass an order of final assessment followed by issuance of recovery citation.

Shri N.K. Tiwari, learned counsel for the respondent-Electricity Department is unable to justify the impugned order as no date for hearing was fixed nor any consideration was accorded to the objection filed by the petitioner on 08.01.2022. He states that liberty be granted to the respondents to pass a fresh order.

Accordingly, the order of final assessment dated 10.01.2022 is hereby quashed leaving it open to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Hence, the writ petition is **disposed of**.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 21.3.2023/ Rama Kant